

5, 2023 naming Defendant as sole beneficiary was valid. Ameritas further concluded that the change was entered using the same login credentials previously used to access the account, that the system reflected the change as “pending” rather than rejected, and that a confirmation email was sent, after which neither David White nor Ms. Thompson took any action.

Taken together, the evidence reflects ambiguity regarding the June 2023 beneficiary change. Plaintiff characterizes the change as rejected based on Thompson’s contemporaneous understanding of the Ameritas system’s response, while Ameritas later characterized the same transaction as legally effective notwithstanding its “pending” status in the online system.

Plaintiff’s theory of elder abuse rests on the assertion that Defendant herself caused the beneficiary designation to be changed. Plaintiff alleges, on information and belief, that Defendant accessed David White’s Ameritas account or completed a beneficiary change form on his home computer. No declarant with personal knowledge attests to having observed Defendant perform any such acts, and Plaintiff identifies no evidence that Defendant possessed login credentials or accessed the Ameritas system. To the extent Plaintiff characterizes Thompson’s declaration as stating that Defendant possessed login credentials, that characterization is not supported by the declaration itself.

While undue influence may be proven through circumstantial evidence and reasonable inferences, those inferences must be grounded in evidence of the alleged influencer’s conduct. Here, the record does not contain facts from which a reasonable inference can be drawn that Defendant engaged in conduct amounting to elder abuse or fraud.

Plaintiff also relies on allegations concerning Defendant’s conduct after David White’s death, including alleged nonpayment of taxes, receipt of a real estate commission, and personal expenditures. The Court does not find this post-death conduct probative of whether Defendant engaged in wrongful conduct in connection with the June 2023 beneficiary designation.

Disposition

Plaintiff has not demonstrated that it is more likely than not to prevail on the merits and has therefore failed to establish the probable validity required for issuance of a prejudgment writ of attachment. As such, the Application is denied.

13. 9:00 AM CASE NUMBER: C25-01138
CASE NAME: MERCURY INSURANCE COMPANY VS. SELAMAT KETAPI
***HEARING ON MOTION IN RE: TO QUASH SERVICE AND SET ASIDE DEFAULT**
FILED BY: KETAPI, MAHLA
TENTATIVE RULING:

Parties to Appear.

14. 9:00 AM CASE NUMBER: C25-01595
CASE NAME: PRODIGY MANAGEMENT, LLC VS. KHRISTIAN BUISON
***HEARING ON MOTION IN RE: APPLICATION FOR WRIT OF POSSESSION AND HEARING RE:**
KHRISTIAN JOY BUISON
FILED BY: PRODIGY MANAGEMENT, LLC
TENTATIVE RULING:

Parties to Appear

15. 9:00 AM CASE NUMBER: C25-01792
CASE NAME: MUNA RANTISI VS. KHALED ABUKESHEK
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: ABUKESHEK, KHALED AHMAD
TENTATIVE RULING:

Before the Court is Defendant Khaled Ahmad Abukeshek's Demurrer to Plaintiffs' Complaint.

Defendant's unopposed Request for Judicial Notice is **GRANTED**. (Cal. Evid. Code § 452 (d).)

Defendant's demurrer is **SUSTAINED** as discussed below.

Factual Allegations and Procedural Background

This matter arises from an incident that occurred on December 2, 2022, wherein moving Defendant Khaled Ahmad Abukeshek ("Defendant") allegedly shot Khalid Haddad. Khalid Haddad suffered injuries to his head, hand, arm and leg from the gun shots. It is alleged that Khalid Haddad (Decedent) died on July 12, 2023, because of the gun shots.

Plaintiffs filed the Form Complaint in this matter on June 20, 2025. It includes three causes of action: (1) general negligence, (2) premises liability, and (3) intentional tort. Plaintiffs in this action include: (1) the Estate of Khalid Haddad; (2) Muna Rantisi, individually and as successor in interest of Khalid Haddad; (3) Victor George Haddad; (4) Razan Victor Haddad; and (5) Faisal Victor Haddad. All the individual Plaintiffs are immediate family members of the deceased: Muna Rantisi: mother; Victor George Haddad: father; Razan Victor Haddad: sister; and Faisal Victor Haddad: brother.

On November 12, 2024, Plaintiffs Estate of Khalid Haddad and Muna Rantisi, individually and as successor in interest of Khalid Haddad, filed a separate lawsuit against Moving Defendant Khaled Ahmad Abukeshek, Shaker Abukishk, and Violet Jew – all of which are Defendants in this action. That matter is also pending in Contra Costa Superior Court – case number C24-03021 (the "03021 Matter"), currently pending before Department 16. The 03021 Matter also pertains to the December 2, 2022, incident and asserts that same three causes of action. The factual allegations are essentially the same as those in the present action.

Defendant Khaled Ahmad Abukeshek demurs to the entire complaint on two grounds: (1) there is another action pending between the same parties on the same cause of action (Cal. Code Civ. Proc. § 430.10 (c)); and (2) the complaint fails to state facts sufficient to state a cause of action (Cal. Code Civ.